

contained a partial disclosure, who received it, which plaintiff was unaware, what the plaintiff would have done differently, or why the facts were inaccessible given recorded, attached, referenced, and leasehold-financing documents.” (Support Memo at 14:26-15:1.)

The Court finds that the SAC contains allegations that *every defendant* concealed the subject facts from each of the Plaintiffs. (See SAC at 138-139.) While this global allegation, without more, might be insufficient, the Court finds that the significant, detailed allegations set forth in paragraphs 38 and 45-50 provide ample detail to satisfy the heightened pleading standard regarding the fraudulent concealment claim.

D. CONCLUSION

As discussed above, Moving Defendants fail to persuade the Court that Plaintiffs’ allegations are insufficient to state one or more of the purported claims. For this reason, the demurrer is OVERRULED.

.....
Bright Power, Inc. v. Accelerant National Insurance Company et al 24CV002174

DEFENDANTS BLUE SKY UTILITY LLC AND BLUE SKY UTILITY 2021 IV LLC’S
DEMURRER TO PLAINTIFF BRIGHT POWER, INC.’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. As the only claim remaining in the action is stayed (see Minute Order of March 19, 2026) the Clerk is directed to change the Case Management Conference, scheduled for November 19, 2026, to a Status Conference re: Stay.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants Blue Sky Utility LLC and Blue Sky Utility 2021 IV LLC (collectively Moving Defendants) demur, pursuant to California Code of Civil Procedure, sections 430.10, subdivisions (c) and (e), 426.30, subdivision (a), and 430.30, subdivision (a), to the First Amended Complaint (FAC) filed by Plaintiff Bright Power, Inc (BPI).¹ The FAC asserts a single cause for foreclosure on a Mechanic’s Release Bond. While the Notice of Demur asserts that the demurrer is made on three grounds, only one is addressed through the supporting memorandum

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

(Support Memo). Therein Moving Defendants argue that BPI is barred from asserting its cause of action here because it constitutes a compulsory counterclaim in a prior action.

Moving Defendants' Request for Judicial Notice is GRANTED. The Court takes judicial notice of each of the Exhibits thereto. However, the Court does not take judicial notice of Exhibits 1-3, or 5 for the truth of matters asserted therein. As to Exhibit 6, "Judicial notice may be taken of 'the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.'" (*Linda Vista Vill. San Diego Homeowners Assn., Inc. v. Tecolote Invs., LLC* (2015) 234 Cal.App.4th 166, 184 (*Linda Vista Village*); see also *Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 (*Green Foothills*) [held: trial court properly took judicial notice of the filing of a Notice of Determination].)

B. LEGAL BACKGROUND

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.)

With exceptions having no apparent relevance here, "if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (§ 426.30, subd. (a).) For purposes of applying the statute, " '[r]elated cause of action' means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (§ 426.10, subd. (c).) "Section 426.30 is an affirmative defense that completely disposes of any cause of action to which it applies." (*Chao Fu, Inc. v. Chen* (2012) 206 Cal.App.4th 48, 56.) "The statute is to be liberally construed to advance its purpose" which is the avoidance of multiplicity of actions by "provid[ing] for the settlement, in a single action, of all conflicting claims between the parties arising out of the same transaction." (*Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 993.)

Pursuant to the allegations of the FAC, the subject lien is security for payment for work that BPI performed for Moving Defendants. "Plaintiff is a licensed contractor who performed a solar energy project at the subject property pursuant to a written contract with Blue Sky. Plaintiff completed the contract, was not paid and provided proper notices to said Defendants but said Defendants failed and refused to pay as required and requested." (FAC at ¶ 5.)

Moving Defendants assert that this "solar energy project" and the "written contract" relating thereto are the same as those, identified as the "Montebello Project," at issue in Moving

Defendant Blue Sky Utility 2021 IV LLC's Fifteenth Cause of Action for Breach of Contract asserted against BPI through the Complaint in *Blue Sky Utility LLC, et al. v. Bright Power Inc.*, assigned Case No. 24CV001768 pending before this Court (The 1768 Action). Not only does BPI fail to deny the assertion, it appears to concede the point. (See Opposition at 2:13 ["This case also involves the Montebello project"].)

Based on a review of the FAC, the Complaint in the 1768 Action, and the parties' respective briefs on the instant Motion, the Court finds that BPI's cause of action asserted against Moving Defendants through the FAC arises out of the same transaction as the Fifteenth Cause of Action asserted against BPI in the 1768 Action. Because the 1768 Action was filed earlier, the instant action against the Moving Defendants is barred by Section 426.30, subd. (a).

Based on the foregoing the Demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*)

In light of BPI's concessions (in the Opposition) regarding the nature of its claims in the instant action, it does not appear to the Court that there is any reasonable possibility that BPI can amend the FAC to "plead around" the bar of Section 426.30, subdivision (a). BPI not only fails to suggest how it might do so, it does not request leave to amend through its Opposition. The Demurrer is, therefore, SUSTAINED WITHOUT LEAVE TO AMEND.

.....
Alexander Perry v. County of Napa et al

25CV000598

APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE

APPEARANCE REQUIRED: The Application is GRANTED. The Trial Management Conference, currently set for August 6, 2026, and the Trial, currently set for August 10, 2026, are hereby VACATED. The parties are directed to appear at the hearing to select new dates.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant County of Napa applies, pursuant to California Rules of Court rules 3.1202, subdivision (c) and 3.1332, subdivisions (c) and (d), for an order continuing the trial date and resetting all trial-related dates and deadlines to run from the continued trial date.